Topic 15 — Emergency Provisions

Covers syllabus (click to expand)

Types: National Emergency (राष्ट्रीय आपात) (352) | President's Rule (राष्ट्रपति शासन) (356) | Financial Emergency (वित्तीय आपात) (360) | Martial Law vs National Emergency | Misuse of 356 | 44th (44वां संशोधन) Amendment & Emergency | Effect on Fundamental Rights (मौलिक अधिकार) (358–359)
Comparison: Grounds | Articles | Approval | Duration | Effects | Revocation

> **Sources baked in:** Laxmikanth (Emergency), Part XVIII Arts. 352–360, 34, 250, 353–359, 365, 38th/42nd/44th, *Bommai*, *ADM Jabalpur*, UPPCS PYQs 2018–2025 **Weight:** ★★★ — **352** A/R (2024); Financial Emergency = **360** (2024); 44th knives (written Cabinet, armed rebellion, 20 & 21); *Bommai* floor test; 356 ≠ SC **Last verified:** September 2026 — Ghatnachakra Extra Drill (Emergency); teaching gap-pass from dump **Current Affairs:** 356 still the federal live-wire (*Bommai* / Punchhi "localise"); 360 **never used**; election petitions stay Art. **329** even during Emergency

Current Affairs

Why these years are asked.

- **2024:** 352 Assertion–Reason; Financial Emergency matched to **360** (direct PYQ).
- **1978:44th Amendment** rewrite — every 352 / 358 / 359 question.
- **1994:** *Bommai* — 356 is justiciable.
- **1975–77:** Internal Emergency — why the 44th exists.
- **Never:** Art. **360** ("Which has never been used?").
- **1977–78:** Shah Commission on 1975 excesses.
- **1992:** UP President's Rule after Babri (Leading state).

Frame

Emergency Provisions sit in **Part XVIII** (Arts. **352–360**).

- There are **three** proclamations: National Emergency (**352**), President's Rule (**356**), and Financial Emergency (**360**).
- Articles **358–359** decide when Fundamental Rights sleep during a National Emergency.
- The **44th Amendment (1978)** rewrote the emergency rules after the 1975–77 Internal Emergency.
- President's Rule typically follows a **Governor's report**, though the President may also act **otherwise**.
- Under **Art. 250**, Parliament may legislate on the **State List** while a 352 Emergency is in force.
- Under **Art. 365**, a State's failure to follow Union directions can open the door to **356**.

Comparison framework (memorise this table)

	National (352)	President's Rule (356)	Financial (360)
Grounds	War · external aggression · **armed rebellion**	State government **cannot be carried on** as the Constitution provides (Governor's report *or* otherwise)	Threat to **financial stability or credit** of India / any part
Whose satisfaction	President, on **written** Union Cabinet advice (44th)	President (Governor's report typical)	President
Approval	**1 month** · **both** Houses · **special** majority	**2 months** · both Houses · **simple** majority	**2 months** · both Houses · **simple** majority
Duration	**6 months** a shot; renewable with no outer cap while Houses agree	**6 months**; **max 3 years**; after **1 year** extra facts (below)	Until **revoked** — no 6-month renewal
LS dissolved?	RS approves; LS must approve within **30 days** of its first sitting	Same idea for 356	Same idea for 360
Revocation	President anytime · **LS** resolution of disapproval **forces** revoke (44th; RS cannot)	President anytime · no LS-disapproval clause like 352	President anytime
Used	**1962, 1971, 1975–77**	**100+** times; first **Punjab 1951**	**Never**
FR hit	**358 / 359**	**No** automatic FR suspend	**No** FR suspend
Federal hit	Union directions · **250** State-List laws · **354** revenues · LS life +1 year (83(2))	President assumes State executive; LA suspended/dissolved; Parliament/President legislates for the State (**357**)	Union directions on financial propriety; salary cuts (incl. **judges**); State money bills reserved

Extension of 356 beyond one year (44th): A **352** proclamation must be in operation in the whole of India **or** that State, **and** the **Election Commission** (निर्वाचन आयोग) must certify that elections cannot be held. Then 356 continues in six-month slices up to a maximum of **3 years**.

National Emergency (Art. 352)

Part XVIII security switch — war / external aggression / **armed rebellion** (44th); **written** Union Cabinet advice; **special** majority; approval within **1 month**.

- The grounds today are **war**, **external aggression**, and **armed rebellion**.
- The **44th Amendment** replaced the older ground of **"internal disturbance"** after the 1975 Emergency.
- A 352 proclamation may cover the **whole of India** or only a **part**.

- The **38th Amendment** first allowed this territorial limit; the **44th Amendment** (44वां संशोधन) kept it.
- The President needs a **written** recommendation of the **Union Cabinet** (44th Amendment).
- On **25 June 1975**, the Emergency was proclaimed on the Prime Minister's advice **without** a Cabinet meeting — that is the key fact.
- Each House must approve by a majority of its **total membership** (सदन की कुल सदस्य संख्या का) and by **two-thirds of members present and voting**.
- The life of the Lok Sabha (लोकसभा का कार्यकाल समाप्त) may be extended **one year at a time** during 352.
- That extension cannot go beyond **six months** after the Emergency ends (**Art. 83(2)**).
- Under **Art. 250**, Parliament may make laws on the **State List** for the emergency area.
- Such 250 laws lapse **six months** after the Emergency ends.
- Under **Art. 353**, the Union may give directions to States on the exercise of their executive power.
- Under **Art. 354**, the President may modify the Centre–State revenue distribution under Arts. **268–279** while 352 is on.
- The **38th Amendment** tried to make the President's satisfaction under 352 **final** and beyond court challenge.
- The **44th Amendment** deleted that finality clause.
- In *Minerva Mills* and later cases, the Court held that a 352 proclamation is **not** beyond judicial review.
- The President may issue a **new** 352 proclamation on another ground even while one is already running (**38th Amendment**).
- The **1971** external Emergency and the **1975** internal Emergency **overlapped** for a time.
- If the Lok Sabha is not in session (पंगु सत्र), **one-tenth** of its members may give written notice of a disapproval motion.
- That notice forces a special sitting **within 14 days** (44th Amendment).
- Under **Art. 172**, a State Assembly's life may also be extended **one year at a time** during 352.
- The same cap applies: not beyond **six months** after the Emergency ends.
- Dual polity continues on paper, but under **353** the Union may direct States on **any** subject, not only Arts. 256/257 matters.

Article strip (352's neighbours)

Federal tilt while 352 is on: Union directions, State-List laws, revenue tweaks — and Union law prevails in a clash.

- **Art. 353:** The Union may give **directions** to States on any matter, and Parliament may make laws as if the matter were on the **Union List** (संघ सूची).
- **353 proviso (44th):** If 352 is confined to a **part** of India, directions or laws for **other** States are allowed only as required for that Emergency.
- **Art. 354:** The President may modify **revenue distribution** (Arts. 268–279) while 352 is on; the order is laid in Parliament.
- **Art. 250:** Parliament's **State-List** power for the emergency area; the law dies **six months** after 352 ends.
- A Union **ordinance** on a State-List matter is also possible if the Lok Sabha is not in session.

- **Art. 251:** If a Union law under 249/250 clashes with a State law, the **Union law prevails** for the clash.

Three proclamations: 1962 and 1971 were **external**; 1975 was **internal**. Both 1971 and 1975 were revoked in **March 1977**.

- **1962** was the China war — an external Emergency.
- **1971** was the Pakistan war — an external Emergency; it overlapped with 1975 for a time.
- **1975–77** was proclaimed on "internal disturbance" and ran from **25 June 1975 to 21 March 1977** (about 21 months).
- The Cabinet met **after** the 1975 proclamation, not before.
- The **Shah Commission (1977–78)** inquired into the excesses of that Emergency.

PYQ — UPPCS Prelims 2024, Q122Assertion (A): Article 352 of the Indian Constitution deals with the declaration of an emergency.

Reason (R): An emergency may take place at any time.

A. Both (A) and (R) are true, but (R) is not the correct explanation of (A) B. (A) is false, but (R) is true C. Both (A) and (R) are true and (R) is the correct explanation of (A) D. (A) is true, but (R) is false

Show answer

Ans: A. (A) correctly facts the article. (R) is a vague truism — it does **not** explain why 352 exists. Grounds are **war / aggression / rebellion**, not "anytime."

44th Amendment (1978) — emergency rewrite

The densest emergency rewrite after 1975 — armed rebellion, written Cabinet, special majority, Arts. 20 & 21 locked, Lok Sabha veto.

Before (38th/42nd (42वां) / 1975 practice)	After 44th
"Internal disturbance" enough for 352	**Armed rebellion**
PM could get a proclamation without Cabinet	**Written Cabinet** advice
Approval window **2 months**	**1 month**
Ordinary majority talk in the 42nd era	**Special** majority for 352
No LS veto of 352	**LS disapproval → revoke**
358 hit Art. 19 in every 352	358 **only** war / external aggression
359 could reach **21** (*ADM Jabalpur*)	**20 and 21 cannot** be suspended
President's "satisfaction" final (38th)	Finality clause **gone**

Before (38th/42nd (42वां) / 1975 practice)	After 44th
356 extendable loosely	Beyond 1 year: **352 in force + EC certificate**
352 approval = **simple** majority (original)	**Special** majority
358/359 acts need not recite the Emergency	**Nexus + recital** (44th) — a law/order **unrelated** to the Emergency does not get 358/359 cover
360 satisfaction also "final" (38th)	Finality **gone** for 360 too

> **Logic:** The **44th** is the single densest emergency amendment. The **42nd** is the Mini-Constitution (Socialist / Secular / integrity, Fundamental Duties (मौलिक कर्तव्य), five Concurrent subjects) — here fact only what it did to **352–360**. Original 352 approval was by **simple** majority; "always special" is a favourite trap.

Effect on Fundamental Rights (358–359)

The FR switch — **358** auto-suspends Art. **19** (war / external only); **359** bars court-enforcement of named FRs by order; **never Arts. 20 & 21**.

	358	359
What sleeps	**Article 19** itself	The **right to move courts** for FRs named in the Presidential order
When	Automatic, on 352 for **war / external aggression**	Any National Emergency, **by order**
Armed rebellion 352	**Does not** trigger 358	**Can** trigger a 359 order
20 & 21	Untouched by 358	**Cannot** be named (44th)
32 / 226	19 is gone so 32 for 19 is empty	Order can bar enforcement of listed FRs (not 20/21)
After Emergency	19 **revives**; acts done while 358 ran stay valid **if** they had an emergency nexus (44th)	Bar lifts; future enforcement returns
Laid in Parliament	Not a 358 order (automatic)	**359 order must be laid** before each House
32	Empty for Art. 19 while 358 runs	May be barred for the **named** FRs (never for 20/21)

- In *ADM Jabalpur* (1976, *habeas corpus* (बन्दी प्रत्यक्षीकरण)), the majority held that even Art. **21** could sleep during Emergency.
- The **44th Amendment** overruled that result politically by locking Arts. **20 and 21**.

- *Justice H.R. Khanna*'s dissent in *ADM Jabalpur* is the name.
- Later benches restored the *Khanna* line in spirit (*IR Coelho* and related holdings).
- **MISA** (Maintenance of Internal Security Act) was the detention statute of the 1975 Emergency — name it; do not turn this into a police manual.

PYQ — UPPCS Prelims 2024, Q102

Match List-I with List-II:

List-I

Code	Item
A	Consolidated Fund of India (भारत की संचित निधि)
B	Finance Commission (वित्त आयोग)
C	Financial Emergency
D	CAG (भारत के नियंत्रक-महालेखापरीक्षक)

List-II

Code	Item
1	Article 266
2	Article 360
3	Article 280
4	Article 148

> Note: Row order in the tables is **not** the answer.

A. A-3, B-1, C-2, D-4 B. A-4, B-1, C-3, D-2 C. A-1, B-3, C-2, D-4 D. A-1, B-2, C-3, D-4

Show answer

Ans: C — A-1, B-3, C-2, D-4. Financial Emergency = **360**.

President's Rule (Art. 356)

State constitutional machinery failure — textbook "State Emergency" (the Constitution never uses that phrase); **355** duty + **365** gateway; approval within **2 months** by **simple** majority; **max 3 years**.

- **Art. 355** is the Union's duty: protect every State against external aggression and internal disturbance, **and** ensure government is carried on as the Constitution provides.
- **Art. 365** is the gateway: if a State **fails to comply** with Union directions, the President **may** hold that 356 is attracted.

- The **Governor** typically reports; the President may also act **otherwise**.
- The President assumes the **State executive**; the Governor runs as the Union's agent; ministers go.
- The Legislative Assembly may be **suspended** or **dissolved**.
- *Bommai* holds: do **not** dissolve the Assembly before Parliament has approved 356.
- Under **Art. 357**, Parliament (or the President, if so empowered when LS is not in session) makes laws for the State.
- After 356 ends, those laws **continue** until the State amends or repeals them.
- The High Court **does not** shut down.
- Article 356 **expressly** bars the President from assuming **High Court** powers.
- Legislation for the State is by Parliament or by the President / another authority under **357** — not by a dissolved Assembly.
- The Rajya Sabha (राज्यसभा) continues (it is never dissolved).
- If the Lok Sabha is dissolved, the Rajya Sabha can approve 356; the new Lok Sabha must approve within **30 days** of its first sitting.

Misuse of 356

First use: Punjab 1951 — mass misuse in **1977** and **1980**; commissions disagree on keep / localise / repeal.

- First use: **Punjab, 1951**.
- In **1977**, the Janata government dismissed **nine** Congress (कांग्रेस) States.
- In **1980**, Indira Gandhi (गांधी) returned the compliment against non-Congress States.
- **Sarkaria** (सरकारिया आयोग) said: keep 356, use it as a **last resort**, insist on a floor test, and put **material facts** in the proclamation.
- **Punchhi** said: **localise** 356 (district, not whole State) where possible, and use **355** first.
- **Rajamannar** said: **repeal** 356.
- In Uttar Pradesh (उत्तर प्रदेश), 356 has been used several times; **December 1992** (post-Babri) is the Leading state that is asked.

Sarkaria's last-resort list (name four):

- Give a warning to the State.
- Give the State a chance to explain.
- Test majority on the **floor**.
- Put **material facts** in the proclamation.
- Do not use 356 for a partisan defeat in an Assembly poll.

***S.R. Bommai* (1994) — the case fact:**

1. Article 356 is **justiciable**.
2. Majority must be tested on the **floor of the House**, not by Raj Bhavan counting.
3. If the proclamation is mala fide or rests on irrelevant grounds, it can be **struck** and the Assembly **revived**.
4. **Secularism** is a basic feature; anti-secular State action can justify 356.

5. Dissolution (विघटन) of the Legislative Assembly comes **after** parliamentary approval, not before.

- In *Rameshwar Prasad* (2006, Bihar), dissolution on a mere apprehension of horse-trading was **struck down**.
- The Governor's 356 *recommendation* is a **discretion** under Art. **163** — the fact here is the article plus *Bommai*.

Financial Emergency (Art. 360)

Threat to financial stability or credit of India or any part — **never used**; no FR switch; judges' salary cut is a **360** line, not 356.

- The ground is a threat to the **financial stability or credit** of India or any part.
- Article 360 has **never** been used.
- Parliamentary approval is required within **2 months**, by **simple** majority of both Houses.
- Once approved, it runs till revoked — there is **no** six-month renewal clock like 352/356.
- The Union may direct States to observe specified **canons of financial propriety**.
- Salaries and allowances of persons serving the Union or a State may be reduced — **including judges of the Supreme Court and High Courts**.
- **All** State Money Bills and other financial Bills are **reserved** for the President.
- A 360 proclamation may cover the **whole of India** or a **part** (same territorial idea as 352).
- The **38th Amendment** made the President's satisfaction "final"; the **44th** knocked that out — same pattern as 352/356.
- There is **no** 358/359 switch under 360. Financial Emergency is money, not a rights switch.

> **Logic:** 360 is not 352. Judges' salary cut is a **360** line, not 356. Match-question favourite = **360** (2024). "Never used" is the other 360 question.

Martial Law vs National Emergency

Force + Art. 34 indemnity — not a fourth Emergency article; 352 does **not** automatically create martial law.

	Martial law	National Emergency (352)
What	Military takes over **civilian** administration in a **locality** (riot, war zone)	**Constitutional** proclamation for the country or a part
Article that "declares" it	**None.** Only **Art. 34** lets Parliament **indemnify** acts done under martial law and validate sentences	**352**
Government	Civilian courts / rights yield to military necessity	Civilian government **continues**; Centre's hold **increases**
FR	Factually crushed by force	**358 / 359** are the legal switches

	Martial law	National Emergency (352)
Territory	Typically a **patch**	Whole India or a notified part
Art. 33	Parliament may **restrict FRs of armed forces** / police — peacetime statute, **not** martial law	Unrelated to 34
Can they overlap?	Yes — martial law in a district **while** 352 is on for the country	352 does **not** automatically create martial law

> **Logic:** "Martial law is Article 352" is **false**. Art. **34** is indemnity, not a proclamation article. Art. **33** is not Art. **34**.

Mains link (one frame)

352 is the security switch, **356** the federal switch, and **360** the unused money switch. Write **1975 → 44th** as the hinge: written Cabinet, armed rebellion, Arts. **20 & 21**, and Lok Sabha veto. Close 356 on ***Bommai*** (floor test, mala fide, do not dissolve first) and Punchhi's line: use **355** before you use **356**. Martial law is **force + Art. 34**, not a fourth Emergency article.